

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 22, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, and pursuant to support received by Mr. Cook and Mr. White, Agenda Item #18 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 8, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Dr. Rinne moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a Public Hearing to receive public comment regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council’s Business Ready Community, Community Readiness Grant Program, to assist with funding the F.E. Warren Air Force Base Enhanced Use Lease Infrastructure Project. Robert Briggs, Planning and Development Director, provided information on the Enhanced Use Lease program and Project generally. He discussed proposed residential and commercial development that is planned for the property; need for more affordable local military housing; Project water and sewer development needs and Business Council’s program involving a grant and loan to assist with funding; economic development benefitting local sales tax revenue, and the opportunity to partner with private developers and the military in enhancing the area as a community gateway. Dale Steenburgen, Executive Director, Greater Cheyenne Chamber of Commerce, spoke in support of the application and Project generally. He noted the need for affordable housing for members of the Air Force in Cheyenne, benefits of the Enhanced Use Lease program to the Air Force and community, and that the property location is a desirable area for growth. There being no further comments or input and purpose of the public hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C) (postponed from 1/08/2018).

Casey Palma, Steil Surveying, agent for the developer, explained they have been working diligently with the City on the annexation agreement to make sure all areas are addressed and expressed appreciation for the Governing Body's patience relative to the numerous ordinance postponements. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Mr. Roybal moved to postpone to February 12, 2018 at the request of staff, seconded by Mr. Case. Motion to postpone carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition; and adjacent portions of Gysel Place and Van Buren Ave.; situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard. Mr. Roybal moved to approve on second reading with staff conditions #1 through 3, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County AR Agricultural Residential to MR Medium-density Residential and MUB Mixed-use Business Emphasis for all of Tracts 31 and 32; and a portion of Tract 39, Hill Heights Addition; situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard). Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Vacating the 16-foot alley situated in Block 329, Original City, and Federal Court located in Block 329, City of Cheyenne, Laramie County, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Vacating that portion of the 16-foot alley right-of-way lying east of the Burlington Northern Railroad Spur Track right-of-way in Block 412, adjacent to Lots 1 thru 8, and 16 thru 22, Block 412, Original City, City of Cheyenne, Laramie County, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development (UDC), amending Sections 1.4.4.a and c, Section 5.1, Table 5-1, Section 5.7.5, and Table 7-10 of the UDC to rename and clarify the definition for group dwelling, to combine and clarify the definitions for adult care – assisted living and adult care – nursing home land uses, combining assisted living facilities, nursing homes and group housing for specific use standards, clarifying where assisted living/nursing homes would be permitted, and adding residential and nonresidential zoning districts where group housing would be allowed as a conditional use. Mr. Roybal moved to approve on second reading, seconded by Mr. Laybourn. Motion carried. Voting "yes" – all members of the governing body with the exception of Dr. Rinne and Mr. Cook voting "no".

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Pershing Marketplace, 2nd Filing, a replat of all of Lot 1, Block 1, Pershing Marketplace, 1st Filing, situated in Section 34, T.14N., R.66W., 6th P.M., City of Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of N. College Drive and E. Pershing Boulevard). Mr. Roybal moved to adopt with staff conditions #1 and 2, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#5905)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Cheyenne Hills Church Subdivision, 2nd Filing, a replat of a portion of Lot 1 Block 1 of Cheyenne Hills Church Subdivision being situated in a portion of the N½ NE¼ of Section 25, Township 14 North, Range 66 West, of the Sixth Principal Meridian, Laramie County, Wyoming (located south of and adjacent to US Highway 30, west of Christensen Road). Motion (per Consent Agenda) carried. (#5906)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Treadway Subdivision, a replat of Tracts 1, 2, 3 & 4, Ultrea Subdivision, situated in Section 8, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of and adjacent to W. Allison Road, east of Walterscheid Boulevard). Mr. Roybal moved to adopt with revised plat map dated January 17, 2018, seconded by Mr. Laybourn. Motion carried. Voting “yes” – all members of the governing body. (#5907)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) grant agreements for three 2018 CLG grants. Motion (per Consent Agenda) carried. (Res#5908; Cont#6780-6782)

RESOLUTION – Announcing the City of Cheyenne’s intent to expend funds to enhance the Depot Plaza by constructing a water feature for economic development purposes, to include a historically important statue. Darren Rudloff, Visit Cheyenne, provided information on the Downtown Cheyenne Core Plan presented a couple of years ago; support for the water feature by local economic development groups, and prior Governing Body approval of the Core Plan. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Roybal. Mr. Laybourn moved to postpone to February 12, 2018 to allow for further information to be received, seconded by Mr. Cook. Discussion followed on benefits of the spray park as a Depot Plaza enhancement; benefits involving tourism, community attraction and downtown atmosphere; following through with plans for projects that have been previously approved; proposed bronze statue in conjunction with the project, and project funding. Concern was expressed that the postponement timeframe may not be adequate, and with the estimated funding expense relative to other larger infrastructure projects in the works that are unfunded. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Mr. Shanor and Mr. Luna voting “no”.

[CA] RESOLUTION – Adopting the Wyoming Region 7 Hazard Mitigation Plan for the City of Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5909)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Whitney Ranch, 1st Filing, a replat of all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition, situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., City of Cheyenne, County of Laramie, State of Wyoming

(located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the submission of an application to the Wyoming Business Council Business Ready Community Grant and Loan Program for a \$3,000,000.00 Community Readiness Grant, and up to \$3,000,000.00 in Business Ready Community loan funding, for the Happy Jack Road/F.E. Warren Air Force Base Enhanced Use Lease Infrastructure Project – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the submission of a loan application to the Wyoming Business Council Business Ready Community Grant and Loan Program, providing for repayment and affirming compliance with applicable state laws and regulations, for a loan in an amount not to exceed \$3,000,000.00 for the Happy Jack Road/F.E. Warren Air Force Base Enhanced Use Lease Infrastructure Project – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction Account Grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to purchase cameras for Cheyenne’s police cars, police body cameras, micro cameras and necessary support items – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2018 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor - Mr. White)

[CA] RESOLUTION – Supporting the appropriation of state funding for Wyoming cities and towns during the 2018 budget session of the Wyoming Legislature – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVS-2018-13827 improving criminal justice responses to sexual assault, domestic violence, dating violence and stalking program (formally known as the grants to encourage arrest policies and enforcement of protection orders program) – referred to Finance Committee. (Sponsor – Mr. White)

County Preliminary Plat of Hawk’s Landing Subdivision, a replat of a portion of Capitol Tracts, Tract 8 being situated in a portion of the NE¼ NW¼, Section 18, T13N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to York Avenue, south of College Drive). Mr. Roybal moved to acknowledge the Planning Commission’s recommendation to approve with staff conditions #1 through 4, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body.

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for epoxy striping. Motion (per Consent Agenda) carried (amount not to exceed \$178,763.00). (#6777)

[CA] Contract between the City of Cheyenne, Youth Alternatives Division, and State of Wyoming, Department of Family Services, for kinship advocacy services for displaced, at-risk youth. Motion (per Consent Agenda) carried. (#6778)

[CAJ] Agreement between the City of Cheyenne and SAA Enterprises – Steve Avila, for the purpose of sponsoring the CABA (Continental Amateur Baseball Association) 18U Wood Bat World Series during the summer of 2018 – referred to Finance Committee.

[CAJ] Professional Services Agreement between the City of Cheyenne and HDR Engineering, Inc., Cheyenne, Wyoming, for construction management services in support of the Christensen Road Overpass and Corridor Project (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CAJ] Sweetgrass PUD (Planned Unit Development) annexation - Master Annexation Agreement between the City of Cheyenne and Sweetgrass Land Co., LLC; Lummis Livestock Company, LLC, and Arp and Hammond Hardware Company, for an area commonly known as the Sweetgrass Annexation, being a portion of Sections 8 and 9, all of the W½ Section 14, a portion of the E½ E½ of Section 17, and all of Sections 15, 16, and 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming – referred to Public Services Committee.

[CAJ] Professional Services Agreement between the City of Cheyenne and Novo Benefits, LLC, for employee benefits consulting and brokerage services – referred to Finance Committee.

[CAJ] Consideration of Bid #E-12-18 for furnishing transit vehicle wraps for the Transit Division, and authorizing the Mayor and City Clerk to execute a Professional Services Agreement between the City of Cheyenne, Transit Division, and Wyoming Signs, LLC, Mills, Wyoming, in conjunction with the bid. Motion (per Consent Agenda) carried (amount not to exceed \$84,300.00). (#6779)

[CAJ] Consideration of Bid #E-15-18 for furnishing one new in-stock 71-passenger bus for the Community Recreation and Events Department, Latchkey Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid submitted by Lewis Bus Group, North Salt Lake, Utah, in an amount not to exceed \$84,250.00).

[CAJ] Consideration of RFP #13-18 to provide a play system and safety surfacing in Holliday Park, and authorizing the Mayor and City Clerk to execute a Professional Services Agreement between the City of Cheyenne, Community Recreation and Events Department, and Great Western Park and Playground, Inc., Wellsville, Utah, in conjunction with the RFP (Community Development Block Grant funds). Motion (per Consent Agenda) carried (amount not to exceed \$197,906.60) (#6783)

[CAJ] Consideration of Bid #E-13-18 for furnishing one new mobile observation platform for the Cheyenne Police Department (Homeland Security Grant) – referred to Finance Committee.

[CAJ] Contract Modification No. 2 to Contract No. 6552 between the City of Cheyenne and HDR, Inc., Cheyenne, Wyoming, for additional design modifications, adjustment to construction engineering services, and any required additional services for the Prairie Avenue and Frontier Mall Intersection Improvements Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$103,186.55). (#6552)

[CAJ] Contract Modification No. 1 to Contract No. 6066 between the City of Cheyenne and BenchMark Engineers, P.C., Cheyenne, Wyoming, for services in connection with the Christensen

Road Overpass and Corridor Project (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$27,500.00). (#6066)

[CA] Contract Modification No. 2 to Contract No. 6498 between the City of Cheyenne and DHM Design Corporation, Denver, Colorado, for additional groundwater sampling and analysis for West Edge Engineering Design Services / Civic Center Commons Project (FEMA Pre-Disaster Mitigation Grant funds) – referred to Finance Committee.

[CA] Consideration to purchase Odyssey fareboxes for the Cheyenne Transit Division, and authorizing the Mayor and City Clerk to execute a Professional Services Agreement between the City of Cheyenne, Transit Division, and Genfare, Elk Grove Village, Illinois, in conjunction with the purchase – referred to Finance Committee.

Under other business, Mr. Case referenced Agenda Item #28(f), Professional Services Agreement with NOVO Benefits, and encouraged attendance by interested parties at the next Finance Committee meeting to receive information on proposed services to be provided by NOVO. He commented on service areas in which he had concerns or questions. Pursuant to reference of the next meeting of the Finance Committee, Sylvia Hackl, City Attorney, confirmed the meeting was scheduled for Monday, February 5 at 11:00 a.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:35 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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